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MOTION TO MODIFY

The Court tenders the following

tentative decision in the matter California Coastal Commission v. Madalon Witter, et al., Los Angeles County Superior Court case number 22STCV05780, set for hearing on September 11, 2026. Kimberly Lineberry (Defendant) moves to dissolve or modify the injunction against it entered on April 13, 2011. The California Coastal Commission (Plaintiff) opposes the motion. The motion is denied.

A.

Legal Standard

"In any action, the court may on notice modify or dissolve an injunction or temporary restraining order upon a showing that there has been a material change in the facts upon which the injunction or temporary restraining order was granted, that the law upon which the injunction or temporary restraining order was granted has changed, or that the ends of justice would be served by the modification or dissolution of the injunction or temporary restraining order." (Civ. Code, § 533.) A permanent injunction is subject to modification or dissolution upon a proper showing. (Sontag Chain Stores Co. v. Superior Court in and for Los Angeles County (1941) 18 Cal.2d 92, 94–95.)

B. Discussion

Defendant seeks to modify or dissolve the injunction entered in this matter on April 13, 2011. The terms of

the injunction stated that if the defendants contended after the issuance of the injunction that “any aspect of the injunction cannot be reasonably feasibly implemented,” it is the defendants’ burden to demonstrate the lack of reasonable feasibility to the Court by clear and convincing proof. (Valencia-Moreno Decl., Ex. 1.) Specifically, Defendant asks the Court to modify paragraph 3(l)(ii) of the judgment — which requires the implementation of a certain restoration plan — in the following ways: (1) excluding remedial grading and topographic restoration; (2) confining the revegetation obligation to areas within the Judgment’s exhibits that actually require it; (3) requiring a new performance metric; (4) and providing that the five-year performance period only runs once such prerequisites are established.

Preliminarily, it must be noted that the Injunction was issued 15 years ago. It sets forth the required actions to be taken and prescribes a timeline for these matters to be done. The concept appears to be that the Defendants would propose plans to deal with the required changes and would then negotiate with the Plaintiff Coastal Commission to implement the plans. Thus, the initial action was submission of a plan for the removal of unpermitted development within 60 days of entry of Judgment and then the submission of a plan for restoration, revegetation and monitoring within 30 days of the removal of unpermitted development. It appears these plans were never submitted. Instead, Defendants are asking to bypass this process and go right to a judicial determination that compliance with the terms of the injunction is not feasible. The Court believes that the proper course is to follow the process contemplated by the Injunction – i.e. to submit plans consistent with their views of what feasibly can be done and then work with the Coastal Commission to narrow areas of disagreement and, hopefully, reach agreement on the required actions.

To obtain the relief she seeks on this motion, Defendant must demonstrate either a material change in the facts upon which the injunction was based, a change in law, that the ends of justice would be served by modification, or that any aspect of the injunction cannot be reasonably feasibly implemented by clear and convincing evidence. First, Defendant asks the Court to clarify that the injunction does not require remedial grading of the property. She argues that remedial grading cannot be reasonably feasibly implemented. As an offer of proof, she presents testimony

from Certified Ecological Restoration Practitioner David Hughes. He testifies that remedial grading is not necessary to restore the natural habitat as defined under the injunction. (Hughes Decl. ¶ 25.) Such restoration activities would require a separate undertaking involving large-volume earthwork. (Ibid.) He also notes that securing the required permitting would add time to the restoration schedule. (Id. ¶ 26.) For their part, Plaintiffs submit the Declaration of Kayley Griffith, a Senior Environmental Scientist on the Ecology Team of the Coastal Commission. Ms. Griffith discusses the potential need for grading and notes that it is not specifically required by the Injunction but might be necessary to implement the overall restoration effort. It is not possible to determine whether the goal of restoration can be achieved without grading, because the Defendant has not submitted the required plan of how they would accomplish the overall project. At this point, based on the submissions, the Court cannot find that Defendant has demonstrated by clear and convincing evidence that grading would not be required and if it were that it cannot be done because it is not feasible. The Court finds that such testimony does not constitute clear and convincing evidence that remedial grading cannot be done because it is not feasible. Plaintiff presents no temporal or monetary concerns which would make such restoration activities impossible. Additionally, while Defendant's argument that the injunction did not explicitly require grading does not constitute a basis for modification, it still fails. The injunction calls for the implementation of a plan to remove all unpermitted development and restore the natural habitat, and such a directive does not exclude topographical modification.

Second, Defendant seeks to modify the standard by which vegetative restoration work will be deemed complete. Specifically, paragraph 3(I)(ii)(a)(I) requires revegetation of certain impacted areas, such that those restored areas achieve "similar plant density, total cover and species composition as that typical of undisturbed chaparral vegetation in the surrounding area within 5 years from the initiation of revegetation activities." Defendant argues that this constitutes an unenforceable performance standard. The Court disagrees. The injunction language identifies a reference point by which Defendant's compliance may be measured: the surrounding area's vegetation. Defendant also argues that a material change in facts, namely damage wrought by the 2018 Woolsey Fire on surrounding vegetation, makes compliance impossible. She explains that the immediately adjacent chaparral vegetation is no longer undisturbed due to the fire damage. But the injunction uses "undisturbed chaparral vegetation in the surrounding area" as the relevant comparison. Even

if some vegetation became disturbed by the fire, other undisturbed vegetation in the surrounding area would remain. Thus, Defendant's second requested modification is also unwarranted.

Finally, Defendant argues that the ends of justice require modification of the injunction because the resources of the trust are insufficient to fund compliance costs for a property which produces no income. The Court does not find that the ends of justice require modification or dissolution: the hardship imposed on the trust arises out of the violations prior parties were adjudicated to have committed. Defendant does not present further separate arguments in support of her other requested modifications to the injunction. Moreover, the Court believes that the interests of justice would be served by the parties following the direction of the Injunction and trying to work together as contemplated to arrive at a negotiated approach to compliance with the Injunction. No effort has been made in that regard. Accordingly, Defendant's motion is denied.

C. Conclusion

The Court denies the motion.